

24CV05905 The People of the State of California v National CPR Foundation LLC et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-01

Motion: 1. Motion for Protective Order; 2. Motion to Compel

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Tentative Ruling: The People of the State of California v National CPR Foundation LLC et al

Case Number

24CV05905

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/01/2026 - 10:00

Nature of Proceedings

1. Motion for Protective Order; 2. Motion to Compel

Tentative Ruling

Plaintiff: Christopher Dalbey, Michael Hestrin, Evan Goldsmith

Defendants: Sean Ponist

Acknowledgements

The Court acknowledges and appreciates the professional work done by counsel in the case. The case has been contentious; acrimonious at times. The Court apologizes for the length of this Ruling, but I cannot get everything done in one sitting and need to keep my notes all in one place.

Issues

(1) Motion for Protective Order

(2) Motion to Compel

RULINGS

For the reasons set out below:

1. The Motion for a Protective Order is GRANTED but the request for sanctions is DENIED.
2. The Motion to Compel is DENIED.
3. The Pretrial Conference set for 7/22/26 at 11:30 am is confirmed. All trial documents are due one week in advance [in limine motions; witness lists with time estimates; exhibits exchanged; customized jury instructions and jury verdict forms; trial briefs]. The jury panel comes over on 7/23/26 at 9am.

Analysis

There are two motions before the Court: (1) a motion by the People for a protective order (filed on May 14, 2026); and (2) a motion by the Defendants to compel further responses to discovery (filed on June 9, 2026). [The motion to compel was advanced to this hearing date by order on a stipulation filed on June 18, 2026. Trial is now set for July 22.]

Motion for Protective Order

The motion relates to a deposition notice to the person most qualified of the Plaintiff. Because this is an enforcement action by the People, such a motion is evaluated under the standard for a deposition of counsel set forth in *Carehouse Convalescent Hospital v. Superior Court* (2006) 143 Cal.App.4th 1558: "In considering the propriety of deposing opposing counsel in a particular case, California applies a three-pronged test The test is:

"First, does the proponent have other practicable means to obtain the information?

Second, is the information crucial to the preparation of the case?

Third, is the information subject to a privilege?' [Citation.]

"Each of these prongs poses an independent hurdle to deposing an adversary's counsel; any one of them may be sufficient to defeat the attempted attorney deposition." [Citation.] The proponent of the deposition 'has the burden of proof to establish the predicate circumstances for the first two prongs,' while the party opposing discovery has the burden of establishing the preliminary facts to support any claim of privilege.'" (*People v. Superior Court (Credit One Bank, N.A.)* (2025) 112 Cal.App.5th 804, 817.)

The People's Motion for Protective Order

Filed 5/14/26; 28 pages; summarized: This Motion is based on this Notice and Motion, the attached Memorandum of Points and Authorities, the attached Declaration of Evan H. Goldsmith ("Goldsmith Decl."), in support thereof, the complete files and records in the above-captioned action, and on such arguments and authorities as may be presented at hearing.

As set forth in the Goldsmith Declaration, this Motion follows written and telephonic correspondence with Defendants on April 3, 2026, in which the parties discussed the People's objections to proceeding with the Deposition, and in which the People offered an alternative method of obtaining Defendants' requested discovery. Accordingly, the People respectfully request this Court enter a protective order pursuant to the [Proposed] Order submitted herewith and issue sanctions against Defendants.

On May 7, 2026, Plaintiff, the People of the State of California, received a Notice of Deposition from Defendants, seeking the deposition of the Person Most Qualified to testify for the People. The Deposition Notice listed fourteen topics for examination. On May 11, 2026, the People met and conferred with Defendants regarding the Deposition Notice. The People had previously advised Defendants that under *People v. Superior Court of Riverside County (Credit One Bank)* (2025) 112 Cal. App. 4th 804, a Defendant must show "extremely good cause" to proceed with a PMQ deposition of the People. The

People further explained that, under the *Credit One Bank* decision, whether a PMQ deposition of the People is permissible is analyzed under the same standard as the question of whether the deposition of a party attorney is appropriate, using the factors enunciated in *Carehouse Convalescent Hospital v. Superior Court* (2006) 143 Cal. App. 4th 1558 (*Carehouse*). The People and Defendants agreed that Defendants would issue the PMQ deposition notice, and that the People would either serve objections to it and Defendants would bring a motion to compel, or the People would move for a protective order, which would obviate the need for the People to produce a witness unless ordered by the Court. The People file this motion for a protective order, pursuant to Code of Civil Procedure section 2025.420 to prohibit Defendants from taking the PMQ deposition as outlined in Defendants' Deposition Notice. The People have already provided responses to extensive written discovery, including answers to 83 Special Interrogatories, 21 Form Interrogatories, 61 Requests for Admission, and 76 Requests for Production. This included over 4,000 pages of photographs, web captures, communications, and other relevant documents. As a result, the People have provided the majority of the information Defendants seek to obtain through a PMQ deposition. What little information Defendants do not have can be obtained through additional written discovery, or if necessary, written deposition. Finally, as discussed, much of the information Defendants seek to elicit at a PMQ deposition of the People is either covered by privilege or expert discovery rules.

A Defendant in a civil law enforcement action brought by a district attorney in the name of the People may notice a PMQ deposition of the People under Code of Civil Procedure section 2025.230. (*Credit One Bank N.A.*, supra, 112 Cal.App.5th at p. 821.) If the People seek a protective order, however, the party who noticed deposition "must show 'extremely' good cause" to proceed with it. "[D]eposing the People amounts to deposing the People's counsel." As a result, when a party seeks to take a PMQ deposition of the People, Courts analyze whether the deposition should proceed using the factors enunciated in *Carehouse*, supra, 143 Cal. App. 4th 1558.

Carehouse poses three questions to determine whether a deposition should proceed. "First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege?"

"Each of these prongs poses an independent hurdle . . .; any one of them may

be sufficient to defeat" the deposition. "The proponent of the deposition 'has the burden of proof to establish the predicate circumstances for the first two prongs,' while the party opposing discovery has the burden of establishing the preliminary facts to support any claim of privilege." (*Credit One Bank*

N.A., supra, 112 Cal.App.5th at p. 817.)

Here, Defendants have made no attempt to establish the predicate circumstances for the first two Carehouse prongs as they relate to any of the fourteen topics in their Deposition Notice. With regard to the third Carehouse prong, as demonstrated below, thirteen of the fourteen topics listed in the Deposition Notice seek information protected by the work product doctrine, official information privilege, the deliberative process privilege, or expert discovery rules.

The following evaluates Defendants' deposition topics under the three Carehouse Factors. All of Defendants' proposed topics are improper for an oral PMQ deposition based on at least one of these factors. As a result, this Court should enter a protective order prohibiting Defendants from proceeding with a PMQ Deposition on the topics included in the Deposition Notice.

A. Defendants have Other Practicable Means to Obtain the Information.

Under the first Carehouse factor, the proponent of the deposition must show that they have no other practicable means of obtaining the information sought by the deposition. Here, Defendants have other practicable means of obtaining the information it seeks in every one of its non-privileged examination topics. In fact, through written discovery, the People already provided Defendants the information they seek in all of their Topics for Examination.

Specifically:

Topic 1: "Facts and information concerning YOUR determination that OSHA required CPR training programs to include a hands-on / in-person component to comply with its guidance, including when such determination was made, who made the determination, the qualifications of said person(s) making the determination and the basis for such determination as well as when any

hands-on / in-person training component is required."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 2: "Facts and information concerning YOUR efforts, if any, to stop, prevent or otherwise alter DEFENDANTS' purportedly wrongful conduct, and/or that of other online CPR training providers, prior to filing YOUR COMPLAINT as well as any prior enforcement actions against online CPR training providers."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially relevant, non-privileged, non-protected fact.

Topic 3: "Facts and information concerning YOUR efforts, if any, to provide fair notice to DEFENDANTS, and/or other online CPR training providers, of the People's new interpretation of OSHA requirements and enforcement actions prior to filing YOUR COMPLAINT." In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special

Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially relevant, non-privileged, non-protected fact.

Topic 4: "Facts and information concerning YOUR determination that AHA guidelines required CPR training programs to include a hands-on component to comply with its guidance, including when such determination was made, who made the

determination and the qualifications of said person(s) making the determination and the basis for such determination as well as how, if

at all, DEFENDANTS' programs fail to comply with AHA guidelines."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 5: "Facts and information concerning any notice that YOU provided to

DEFENDANTS, other online CPR training providers or the general public, regarding YOUR determination that, in order to claim compliance with AHA guidelines, a CPR training provider must include a hands-on / in-person component or opportunity for them to conform to this interpretation."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 6: "Facts and information concerning any consumer complaints against

DEFENDANTS, including any online complaints as well as complaints to any District Attorney Offices as well as any interviews of consumers about DEFENDANTS or online CPR training providers."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 7: "Facts and information concerning the allegedly problematic language on DEFENDANTS' website(s), the duration of such language, changes to the language and the duration of those changes."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially relevant, non-privileged, non-protected fact.

Topic 8: "Facts and information concerning OSHA compliance requirements, including OSHA guidelines, regulations, best practices, letters of interpretation as well as any hands-on/in-person training requirements and employer responsibilities for compliance with OSHA."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 9: "Facts and information concerning AHA CPR training standards or guidelines, AHA online training program(s), any hands-on / in-person training requirements thereof, and any effort by the People to provide fair notice of their interpretation of the requirements to DEFENDANTS or other online CPR training providers."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 10: "Facts and information concerning the scope of the consumers alleged misled by NCPRF's advertising, including the number of such consumers, the names and contact information of such consumers, how specifically such consumers were misled as well as the actual harm to any

such consumers."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 11: "Facts and information concerning the application of Cal/OSHA for California consumers of DEFENDANTS' products."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 12: "Facts and information concerning requirements to claim that a company is accredited and why NCPRF purportedly should not have claimed such."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 13: "Facts and information concerning DEFENDANTS' strikethrough pricing, including market prices for similar products at or around the time thereof."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Topic 14: "Facts and information concerning all discussions with DEFENDANTS' prior counsel regarding changes that YOU asked them to make to NCPRF's website and DEFENDANTS' compliance therewith and changes to their websites thereafter."

In response to Defendants' Requests for Production, Sets One and Two, and Defendants' Special Interrogatories, Set One, the People have already produced every potentially relevant, non-privileged, non-protected document and communication in the People's possession, and identified every potentially-relevant, non-privileged, non-protected fact.

Defendants Have Not Shown that the Information It Seeks in the PMQ Deposition is Crucial to the Preparation of Its Case.

Under the second Carehouse factor, Defendants have the burden of showing that the information it seeks in the PMQ deposition is crucial to the preparation of its case. (Carehouse, *supra*, 143 Cal. App. 4th at p. 1563.) Defendants have not done this—and it is clear that some of the topics listed in the PMQ Deposition Notice are not crucial to the preparation of Defendant's case. For example, Topic 2 is "Facts and information concerning YOUR efforts, if any, to stop, prevent or otherwise alter DEFENDANTS'

purportedly wrongful conduct, and/or that of other online CPR training providers, prior to filing YOUR COMPLAINT as well as any prior enforcement actions against online CPR training providers." Pre-

filing notice is not a requirement of any of the pending causes of action, and the topic therefore is not crucial to the preparation of Defendants' case.

Topic 11 is "Facts and information concerning the application of Cal/OSHA for California consumers of DEFENDANTS' products." No Cal/OSHA violations are alleged, and the topic therefore is also not crucial to the preparation of Defendants' case.

C. Some of the Deposition Topics Seek Privileged Information.

Under the third Carehouse factor, the People must establish "the preliminary facts to support any claim of privilege." (Credit One Bank N.A., *supra*, 112 Cal.App.5th at p. 817.) Topics 1-10 and 12-14 clearly call for information protected as attorney work product, the deliberative process privilege, and/or the official information privilege. Because these privileges often overlap, they will be addressed together. The work product doctrine is defined in section 2018.030, which states: "a writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." Section 2018.030 also applies to the unwritten

opinions of attorneys. (Fireman's Fund Ins. Co. v Super. Ct. (2011) 196 Cal.App.4th 1263, 1281.)

Further, communications among the People's attorneys and investigators are covered by the work product doctrine because the People's investigators work at the direction of the People's attorneys. The deliberative process privilege rests on the "policy of protecting the decision making processes

of government agencies." (Board of Registered Nursing v. Super. Ct. (2001) 59 Cal.App.5th 1011, 1040.)

When evaluating whether the deliberative process privilege applies, the question is "whether disclosure of materials would expose an agency's decision-making process in such a way as to discourage candid discussing within the agency and thereby undermine the agency's ability to perform its functions." (Ibid.)

Finally, the official information privilege, reflected in Evidence Code section 1040, protects "official information," meaning "information acquired in confidence by a public employee in the course of his or her duty and not open, or officially disclosed, to the public." A public entity, such as the District

Attorney's Office, can refuse to disclose such information if the interest in "preserving the confidentiality of the information . . . outweighs the necessity for disclosure in the interest of justice." (Evid. Code, § 1040, subd. (b)(2).)

Defendants' Deposition Notice also seeks information covered by expert discovery rules. Code of Civil Procedure sections 2034.210 through 2034.310 govern the disclosure of information related to expert reports, writings, testing, and identities, and provide strict timelines for disclosure. The following explains why the information Defendants seek in Topics 1-10 and 12-14 is protected by an above-listed privilege and/or expert discovery rules:

Topic 1: "Facts and information concerning YOUR determination that OSHA required CPR training programs to include a hands-on / in-person component to comply with its guidance, including when such determination was made, who made the determination, the qualifications of said person(s) making the determination and the basis for such determination as well as when any hands-on / in-person training component is required."

This topic calls for information protected by the work product privilege to the extent that it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories.

It also calls for information protected by the deliberative process privilege because it seeks facts relating to the decision making processes of government agencies. Defendants want to know why the prosecuting attorneys chose to interpret the law in a particular way; this is unquestionably protected attorney work product.

Topic 2: "Facts and information concerning YOUR efforts, if any, to stop, prevent or otherwise alter DEFENDANTS' purportedly wrongful conduct, and/or that of other online CPR training providers, prior to filing YOUR COMPLAINT as well as any prior enforcement actions against online CPR training providers."

This topic calls for information protected by the work product privilege to the extent that it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating

to the decision making processes of government agencies with regards to why and when they decided to act.

Topic 3: "Facts and information concerning YOUR efforts, if any, to provide fair notice to DEFENDANTS, and/or other online CPR training providers, of the People's new interpretation of OSHA requirements and enforcement actions prior to filing YOUR COMPLAINT."

This topic calls for information protected by the work product privilege to the extent that it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating

to the decision making processes of government agencies with regards to why and when they decided to act.

Topic 4: "Facts and information concerning YOUR determination that AHA guidelines required CPR training programs to include a hands-on component to comply with its guidance, including when such determination was made, who made the determination and the qualifications of said person(s) making the determination and the basis for such determination as well as how, if

at all, DEFENDANTS' programs fail to comply with AHA guidelines."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating to the decision

making processes of government agencies. This topic also calls for information protected by expert discovery rules. Defendants want to know why the prosecuting attorneys chose to interpret the law in a particular way; this is unquestionably protected attorney work product.

Topic 5: "Facts and information concerning any notice that YOU provided to

DEFENDANTS, other online CPR training providers or the general public, regarding YOUR determination that, in order to claim compliance with AHA guidelines, a CPR training provider must include a hands-on / in-person component or opportunity for them to conform to this interpretation."

This topic calls for information protected by the work product privilege to the extent that it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating

to the decision making processes of government agencies with regards to why and when they decided to act.

Topic 6: "Facts and information concerning any consumer complaints against DEFENDANTS, including any online complaints as well as complaints to any District Attorney Offices as well as any interviews of consumers about DEFENDANTS or online CPR training providers."

This topic calls for information protected by the official information privilege. In addition, witness interviews are generally protected as attorney work product. (Coito v. Super. Ct. (2012) 54 Cal.4th 480, 496.)

Topic 7: "Facts and information concerning the allegedly problematic language on DEFENDANTS' website(s), the duration of such language, changes to the language and the duration of those changes."

This topic calls for information protected by the work product privilege to the extent that it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories.

Topic 8: "Facts and information concerning OSHA compliance requirements, including OSHA guidelines, regulations, best practices, letters of interpretation as well as any hands-on / in-person training requirements and employer responsibilities for compliance with OSHA."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating to the decision

making processes of government agencies. This topic also calls for information protected by expert discovery rules.

Topic 9: "Facts and information concerning AHA CPR training standards or guidelines, AHA online training program(s), any hands-on / in-person training requirements thereof, and any effort by the People to provide fair notice of their interpretation of the requirements to DEFENDANTS or other online CPR training providers."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating to the decision

making processes of government agencies. This topic also calls for information protected by expert discovery rules.

Topic 10: "Facts and information concerning the scope of the consumers alleged misled by NCPRF's advertising, including the number of such consumers, the names and contact information of such consumers, how specifically such consumers were misled as well as the actual harm to any

such consumers."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories.

Topic 11: "Facts and information concerning the application of Cal/OSHA for California consumers of DEFENDANTS' products."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories.

Topic 12: "Facts and information concerning requirements to claim that a company is accredited and why NCPRF purportedly should not have claimed such."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories.

Topic 14: "Facts and information concerning all discussions with DEFENDANTS' prior counsel regarding changes that YOU asked them to make to NCPRF's website and DEFENDANTS' compliance therewith and changes to their websites thereafter."

This topic calls for information protected by the work product privilege as it requests facts and information related to attorney impressions, conclusions, opinions, and legal theories. It also calls for information protected by the deliberative process privilege because it seeks facts relating to the decision

making processes of government agencies.

For the reasons set forth above, the People respectfully request that the Court grant this Motion for a Protective Order. The People request that this Court not allow the deposition to proceed at all, but if it does proceed, the People request that it be through written, instead of oral, examination. The Court should also order Defendant to pay sanctions of \$4,500, as many of the topics included in its Deposition Notice are clearly improper in light of the Credit One Bank decision.

Supported by the Declaration of Evan H. Goldsmith: As of May 14, 2026, I spent five hours preparing this motion. I expect to spend another five hours on a reply and preparing for oral argument. This does not include any time spent preparing for or meeting and conferring with Defendants. I am requesting \$450 in hourly fees for this time, for a total of \$4,500 (\$450 x 10).

Supported by Exhibit #1.

Defendant's Opposition

Filed 6/9/26; 19 pages; summarized: On May 7, 2026, Defendants, National CPR Foundation ("NCPRF") and Michael Paladino (collectively, "Defendants") served on the People of the State of California (the "State" or "Plaintiff") a Notice of

Deposition (“Deposition Notice”), seeking to depose the Person Most Qualified (“PMQ”) for the State. The Deposition Notice listed fourteen topics for examination, all of which were directly related to Plaintiff’s claims and Defendants’ defenses thereto.

Here, the deposition of the State’s PMQ is necessary because, *inter alia*, the State has failed to provide meaningful answers to Defendants’ numerous discovery requests. In light of the State’s failure to provide substantive discovery responses to Defendants’ form interrogatories, special

interrogatories, and requests for production, the Defendants do not have the information necessary to defend the action brought by the State. As such, Defendants’ deposition of the State’s PMQ is necessary. Accordingly, Defendants request the Court deny the State’s motion for protective order and order the deposition of the PMQ for the reasons discussed herein.

Code of Civil Procedure section 2025.230 provides where the “deponent named is not a natural person,”

[T]he deponent shall designate and produce at the deposition those of its

officers, directors, managing agents, employees, or agents who are most

qualified to testify on its behalf as to those matters to the extent of any

information known or reasonably available to the deponent. As conceded by the State, a Defendant in a civil law enforcement action brought in the name of the People may notice a PMQ deposition of the People under Code of Civil Procedure section 2025.230. In fact, such is expressly stated in the decision cited by the People, *i.e.*, *People v. Credit One Bank, N.A.*, holding that “in a civil enforcement action brought by a government agency [] on behalf of the People, it is proper for the Defendant to notice the People’s deposition under section 2025.010 [and] [t]he procedures of section 2025.230 apply.” (112 Cal.App.5th, 804, 816 (2025).)

As stated in *Credit One*, in determining whether the deposition of the State’s PMQ deposition is appropriate, California applies the three-prong (“Carehouse”) test set forth in *Carehouse Convalescent Hospital v. Brian Sims, et al.* (2006) 143 Cal.App.4th 1558, 1563 because the PMQ is also legal counsel in the case. (*Credit One Bank* at 817.) The Carehouse test sets forth the following factors: “First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege?” Here, Defendants have demonstrated sufficient need to depose the State’s PMQ under Carehouse.

The Court is empowered to issue a protective order only where “justice requires” to protect a party or deponent against “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc. § 2025.420(b)) “The burden is on the moving party to establish “good cause” for whatever relief is requested: “Generally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in ... [the discovery procedure] clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Weil & Brown, *Calif. Prac. Guide*)

To read the moving papers, one is left with the misimpression that *Credit One* barred the right of Defendants to take the deposition of the People’s PMQ and that any effort to do so is *de facto* sanctionable. But *Credit One* did not hold as much. In fact, to the contrary, it expressly held that Defendants have the right to seek the People’s deposition: Thus, we hold that in a civil enforcement action brought by a district attorney (or a similar government agency, like the state’s Attorney General) on behalf of the People, the Defendant may seek to depose the People’s person or persons most qualified under section 2025.230. If the People seek a protective order, the trial Court should analyze whether the deposition should proceed using the Carehouse standard for depositions of opposing counsel. (*Credit One* at 820.) Thus, *Credit One* found that such a deposition was akin to a deposition of counsel, but it did not hold that the State’s deposition could not be taken; rather, it merely remanded the case back to the trial Court to determine if the Carehouse factors had been met and the deposition of the State allowed.

Here, the State' request for a protective order should be denied. To begin with, the State's declaration failed to provide "any factual specificity" necessary for a protective order nor can such information be gleaned elsewhere in the moving papers. Additionally, whereas in the Credit One

decision, the appellate Court noted that the People had responded to and provided significant written discovery and did not mention any issues with the People's responses to discovery in that case. Here, by contrast, the State has stonewalled and refused to provide discovery, leaving the PMQ deposition as the last available avenue for Defendants to obtain the information needed. Accordingly, the State's motion should be denied.

The State asserts, inter alia: Defendants have other practicable means of obtaining the information it seeks in every one of its non-privileged examination topics. In fact, through written discovery, the People have already provided Defendants the information they seek in all of their Topics

for Examination. This is not accurate. To the contrary, instead of providing responsive information in discovery, the State has objected to and failed to answer relevant Special Interrogatories propounded by Defendants, thereby necessitating the present Deposition Notice. Thus, because of the State's stonewalling, it cannot be said that Defendants have obtained the information by other means or are otherwise able to do so.

After meeting and conferring on the State's deficient responses to Special Interrogatories, the State agreed to amend its responses. Instead of providing meaningful amended answers, however, the State merely improperly augmented its objections. Thus, contrary to the State's assertion that it has already provided this information, it has not done so.

The State's responses are the subject of a Motion to Compel filed on this same date, along with this Opposition. Nonetheless, even if the State belatedly provided proper written responses thereafter there would not be time for Defendants to propound further discovery or to otherwise follow up on those

responses. Moreover, written discovery responses are not a substitute for oral deposition testimony. At this stage, Defendants need the ability to ask follow-up questions, probe the completeness of responses, test the credibility of the State's positions and obtain binding admissions.

The State claims that the information sought is not crucial to Defendants' defense. This is not true. For instance, Topic 3 seeks: Facts and information concerning YOUR efforts, if any, to provide fair notice to DEFENDANTS, and/or other online CPR training providers, of the People's new interpretation of OSHA requirements and enforcement actions prior to filing YOUR COMPLAINT. This is highly relevant to the claims and defenses in this action.

First, Business and Professions Code section 17500, upon which Plaintiffs allege or predicate nearly every one of their claims, provides that it unlawful for any person: [T]o make or disseminate or cause to be made or disseminated before the public in this state ... any statement, concerning that real or personal property or those services ... which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading..." This is the "knew or should have known" standard. If the State had provided "fair notice" to Defendants or the industry of their new interpretation and enforcement of OSHA's laws, then Defendants may be liable under 17500 as they would have or should have known of their position. If not had made their position known, however, then Defendants arguably do not have liability as they would not, and should not, have known the State's position.

Second, as set forth in Defendants' Second Amended Answer, Defendants raise the "fair notice" defense (as well as other defenses elsewhere). Defendants' properly pled Seventh Affirmative Defense asserts: (Fair Notice Doctrine—Violation of Due Process) As a seventh and separate affirmative defense to each cause of action stated in the Complaint, these answering Defendants assert the fair notice defense. It is a fundamental principle in our legal system [] that laws which regulate persons or entities must give fair notice of conduct that is forbidden or required." Where the government's new "interpretation is preceded by a very lengthy period of conspicuous inaction, the potential for unfair surprise is acute."

(Christopher v. SmithKline Beecham Corp. (2012) 567 U.S. 142, 152, 158.) “No matter the type of law an agency is enforcing, regulated parties are always entitled to fair

notice of what is prohibited or required before they can be punished for a violation.” (Kerman Telephone Co. v. Public Utilities Com. (2023) 94 Cal.App.5th 920, 932-933.) Defendants have conducted their business and marketing practices consistent with the law for many years. Plaintiff has, however, recently shifted its interpretation of the law without notice to Defendants or the industry. Plaintiff’s enforcement action, based on this interpretation of OSHA requirements, is without “fair notice” and violates Defendants’ due process rights. Thus, notice provided by the State, or lack thereof, is crucial to Defendants’ defenses.

Third, the State further claims that “no Cal/OSHA violations are alleged, and the topic therefore is also not crucial to the preparation of Defendants’ case.” That, however, misses the point.

The State alleges that NCPRF’s “statements falsely represent that NCPRF’s online CPR courses comply with OSHA guidelines” in violation of Business and Professions Code section 17200 and 17500. The State’s allegations rest on the contention that NCPRF falsely or misleadingly claimed compliance with federal OSHA guidelines. However, pursuant to CFR 1952.7(a) and (c), the California State plan, initially approved on May 1, 1973, “covers all private-sector employers and employees” unless excepted. “Cal/OSHA has jurisdiction over almost every workplace in California ... Cal/OSHA lacks jurisdiction in only a few limited areas.” The State has failed to identify any consumers to which the federal OSHA guidelines even apply.

Thus, to the extent that the State cannot demonstrate a “significant portion” of California consumers have been deceived or are likely to be deceived by NCPRF’s business or advertising practices, its action fails.

Accordingly, Defendants’ Deposition Notice Topics related to Cal/OSHA are crucial to its defense of the action.

In sum, each of the noticed topics is directly relevant to a defense to an element of a cause of action or an affirmative defense. As such, the information sought is crucial to Defendants’ defense.

Defendants propounded document requests which paralleled the topics

noticed. The State asserted the same objections there as to the interrogatories but, tellingly, in the privilege log provided in conjunction therewith, only claimed privilege over internal communications. Defendants do not seek the State’s internal communication and, hence, its claims of privilege are not well-taken and do not serve to bar deposition. Here, the State asserts a myriad of privilege objections, including privilege under Code of Civil Procedure section 2018.030, deliberative process and official decision making. Each of these is

addressed in turn below and each objection is not well-taken. Moreover, as conceded by the State, the State “has the burden of establishing the preliminary facts to support any claim of privilege.” The State fails to meet the burden.

First, the State objected under Code of Civil Procedure section 2018.030. While 2018.030 provides absolute protection to any “writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories,” section 2018.030(b) provides qualified protection for other work product “unless the Court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” Moreover, “material that is only evidentiary in nature [] does not constitute work product. Examples of such material include the identity and location of physical evidence or witnesses.” (Coito v. Sup. Ct. (2012) 54 Cal.4th 480, 489.) Here, again, the State has only identified internal communications as privileged, which Defendants do not seek information about, and hence the objection is inapplicable.

Second, the State asserts deliberate process. In asserting the deliberative process privilege, the “key question” is “whether the disclosure of materials would expose an agency’s decision-making process in such a way as to discourage candid discussion within the agency and thereby undermine the agency’s ability to perform its functions.” (Board of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1040.) “Only if the public interest in nondisclosure clearly outweighs the public interest in disclosure does the deliberative process privilege spring into existence.” (Marylander v.

Superior Court (2000) 81 Cal.App.4th 1119, 1128 [internal quotes and citations omitted].) Here, the State has failed to make any showing that the information sought would expose “decision making” or that the exposure does not, nonetheless, outweigh the public interest.

Last, the State asserts protections under Evidence Code section 1040 (official information privilege). Section 1040 protects “information acquired in confidence by a public employee in the course of his or her duty and not open, or officially disclosed, to the public.” A public entity may “refuse to disclose information acquired in confidence if there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure.” (Sander v. State Bar of California (2013) 58 Cal.4th 300, 325. The State has failed to demonstrate that there is confidential information at all, let alone that confidentiality is necessary and not outweighed by necessity for

disclosure. This is especially where, as here, there is no longer an ongoing investigation, but rather a legal action that was filed long ago. Moreover, here, “disclosure is [not] forbidden” nor “against the public interest” as required under section 1040. Indeed, the Attorney General acknowledges it has no legitimate interest in preventing the disclosure of documents and information collected during an official investigation after a case has

been filed, i.e., a necessary predicate of section 1040.

Consistent with the Carehouse factors, the Defendants have demonstrated that they (1) cannot obtain the information they seek elsewhere, (2) the information sought is crucial to its defense, and (3) privilege does not apply or the application of the privilege would be prejudicial to Defendants.

Topic: 1: Facts and information concerning YOUR determination that OSHA required CPR training programs to include a hands-on / in person component to comply with its guidance, including when such determination was made, who made the determination, the qualifications of said person(s) making the determination and the basis for such determination, the qualifications of said person(s) making the determination and the basis for such determination as well as when any hands-on / in-person training component is required.

The State responded with a series of boilerplate objections and failed to identify any information that needs to be withheld (see discussion, supra.) In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, it is relevant to the defense of 17500 and fair notice to understand “when such determination was made,” i.e., that hands-on training was required, “who” made the determination and the “qualifications” of that person. If, for instance, the State only recently determined that hands-on

training was required to claim compliance with OSHA in 2024 and provided notice of that determination at that time, arguably, it could not have faulted companies for advertising compliance with OSHA without a hands-on component beforehand.

Topic 2: Facts and information concerning YOUR efforts, if any, to stop, prevent or otherwise alter DEFENDANTS’ purportedly wrongful conduct, and/or that of other online CPR training providers, prior to filing YOUR COMPLAINT as well as any prior enforcement actions against online CPR training providers.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld (see discussion, *supra*.) In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, it is likewise relevant to the defense of 17500 and fair notice to understand the State's "efforts, if any, to stop, prevent or otherwise alter," Defendants' marketing and business practices. If, for instance, the State never took any action against Defendants or other similarly situated companies, it tends to demonstrate Defendants did not, or should not, know that the statements were false or misleading, i.e., a necessary element of the State's 17500 action.

Topic 3: Facts and information concerning YOUR efforts, if any, to provide fair notice to DEFENDANTS, and/or other online CPR training providers, of the People's new interpretation of OSHA requirements and enforcement actions prior to filing YOUR COMPLAINT.

The State responded with a series of boilerplate objections and failed to identify any information that needs to be withheld (see discussion, *supra*.) In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Similar to the foregoing, the State's "fair notice" to Defendants, or lack thereof, is crucial to the Defendants' fair notice affirmative defense, as well as establishing the State has not satisfied an element of its 17500 action, i.e., "knew or should have known."

Topic 4: Facts and information concerning YOUR determination that AHA guidelines required CPR training programs to include a hands-on component to comply with its guidance, including when such determination was made, who made the determination and the qualifications of said person(s) making the determination and the basis for such determination as well as how, if at all, DEFENDANTS' programs fail to comply with AHA guidelines.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld (see discussion, *supra*.) In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, it is relevant to the defense of 17500 and fair notice to understand "when such determination was made," i.e., that hands-on training was required, "who" made the determination and the "qualifications" of that person. If, for instance, AHA made the determination that AHA guidelines

require CPR training programs have a hands-on component, the timeline for that determination is relevant to the defense of the 17500 action, i.e., did Defendants know or should they have known.

Particularly, given the AHA guidelines are published every five years or so. Moreover, challenging the veracity of the person asserting the foregoing determination is a core evidentiary tool in litigation.

Topic 5: Facts and information concerning any notice that YOU provided to DEFENDANTS, other online CPR training providers or the general public, regarding YOUR determination that, in order to claim compliance with AHA guidelines, a CPR training provider must include a hands-on/in person

component or opportunity for them to conform to this interpretation. The State responded with a series of boilerplate objections and failed to identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, it is relevant to the defense of 17500 and fair notice to know whether notice was provided that hands-on CPR training is required for compliance with AHA guidelines.

Topic 6: Facts and information concerning any consumer complaints against DEFENDANTS, including any online complaints as well as complaints to any District Attorney Offices as well as any interviews of consumers about DEFENDANTS or online CPR training providers.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, consumer complaints, or lack thereof, is relevant to the 17200/17500 claims and, if applicable, determination of any restitution or penalties. Although the State arguably need not demonstrate harm to succeed on its 17500 claims, the lack of consumer complaints still tends to show the absence of "likelihood of deception." Moreover, consumer complaints, or lack thereof, are considerations the Court may take into account when setting penalties. Thus, the foregoing topic is relevant to both to the 17200/17500 claims as well as monetary relief.

Topic 7: Facts and information concerning the allegedly problematic language on DEFENDANTS' website(s), the duration of such language, changes to the language and the duration of those changes.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld (see discussion, *supra*.) In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Certainly, relevant to the defense of 17200/17500 claims is ascertaining what the State asserts is "false" or "misleading." Likewise, as it relates to penalties, the duration, or the extent, of the false and/or misleading statements is a factor the Court may take into consideration. In formulating remedies, the

Court may also take into consideration any self-corrective measures taken by Defendants. Additionally, if corrective action was directed by the State, those facts and information are relevant to Defendants' affirmative defenses.

Topic 8: Facts and information concerning OSHA compliance requirements, including OSHA guidelines, regulations, best practices, letters of interpretation as well as any hands-on / in person training requirements and employer responsibilities for compliance with OSHA.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, it is relevant to the defense of 17200/17500 claims to obtain facts and information related to OSHA guidelines, regulations, best practices, and letters of interpretation, which form the underlying basis for the State's claims. The State has asserted Defendants' statements are false and/or misleading based on the foregoing sources of information. Defendants' ability to challenge the basis for the State's claims is critical to the defense of the action.

Topic 9: Facts and information concerning AHA CPR training standards or guidelines, AHA online training program(s), any hands-on/in-person training requirements thereof, and any effort by the People to provide fair notice of their interpretation of the requirements to DEFENDANTS or other online CPR training providers.

The State responded with a series of boilerplate objections and failed to identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, it is relevant to the 17500 claims and fair notice to know whether notice was provided that hands-on CPR training is required for compliance with AHA guidelines.

Topic 10: Facts and information concerning the scope of the consumers allegedly misled by NCPRF's advertising, including the number of such consumers, the names and contact information of such consumers, how specifically such consumers were misled as well as the actual harm to any such

consumers.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, again, this information is relevant to the 17200/17500 claims as well as, if applicable, the determination of penalties to ascertain the consumers that have been purportedly "misled." Although the State arguably need not demonstrate consumers were actually misled to succeed on its 17500 claims, the State's inability to identify consumers that have been misled, nonetheless, tends to show the absence of "likelihood of deception." Moreover, it is a consideration the Court may take into account when setting penalties.

Topic 11: Facts and information concerning the application of Cal/OSHA for California consumers of DEFENDANTS' products.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, the applicability of Cal/OSHA is crucial to Plaintiff's claims and underscores Defendants' argument that the State cannot demonstrate that the general public has been misled by NCPRF's federal OSHA statements where the vast majority of California consumers fall under the purview of CalOSHA.

Topic 12: Facts and information concerning requirements to claim that a company is accredited and why NCPRF purportedly should not have claimed such.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

Here, the State has conclusively alleged Defendants' statements related to accreditation are false and/or misleading. Information is necessary to the defense of State's claims.

Topic 13: Facts and information concerning DEFENDANTS' strikethrough pricing, including market prices for similar products at or around the time thereof.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true, the State objected and failed to provide any meaningful or substantive information.

The information sought is necessary to the defense of the 17200/17500 claims as Defendants have repeatedly asserted the strikethrough pricing reflects market prices not former pricing or sale pricing. Defendants' assertion has not been addressed by the State and thus information related to the foregoing

topic is necessary to Defendants' defense.

Topic 14: Facts and information concerning all discussions with DEFENDANTS' prior counsel regarding changes that YOU asked them to make to NCPRF's website and DEFENDANTS' compliance therewith and changes to their websites thereafter.

The State responded with a series of boilerplate objections and failed to

identify any information that needs to be withheld. In its moving papers, the State contends that it provided this very same information in discovery. This is not true; the State objected to and failed to provide any meaningful or substantive information.

Here, this topic is related to a number of Defendants' affirmative defenses that turn on whether Defendants made changes to its website at the behest of the State, which are now the subject of the State's contention against Defendants. This, too, impacts the Court's determination of penalties in the

action. It is also relevant to the defense of 17500 and whether Defendants knew or should have known its website language violated the law.

Defendants have attempted, to no avail, to obtain the foregoing information through written discovery and the State has failed to provide substantive responses. Accordingly, the deposition of the People's PMQ is necessary. Defendants have

demonstrated under each of the Carehouse factors that the

Defendants' proposed topics are proper. They have established that each of the topics articulated in the Deposition Notice are critical to address Plaintiff's claims and to support Defendants' defense to the action. The State, rather than articulate a basis for its objections or privilege assertions, merely restated the law without any application of the objection or privilege to the facts. Nonetheless, Defendants have demonstrated prejudice to the Defendants warrants waiving the blanket unsupported privilege assertions

put forth by the State.

Accordingly, deposition of the State's PMQ is necessary to obtain the information properly sought by Defendants.

The Court "shall" impose a monetary sanction against whichever party loses on the motion for protective order unless it finds that party acted "with substantial justification" or other circumstances render the sanction "unjust." (Code Civ. Proc. § 2025.420(h).)

Here, Defendants have brought this opposition to the State's Motion for Protective Order out of necessity. The State repeatedly misrepresents to the Court that it "[has] already produced every potentially relevant, non-privileged, non-protected document and communication in the People's

possession, and identified every potentially relevant, non-privileged, non-protected fact." That is not the case. The State asserted the same boilerplate objections and nonresponses in response to Defendants' Special Interrogatories, Set One. Further, while the State provided responsive documents to Defendants' Requests for Production, Set Two, the

responsive documents provide no context for their applicability. Thus, Defendants have been forced to seek the necessary discovery through the deposition of the State's PMQ. As set forth in the Davis Declaration, Defendants seek monetary sanctions in the amount of \$6,500.

Defendants request the Court deny the State's motion for protective

order and order the State's PMQ to appear for deposition and award monetary sanctions against the State and in favor of Defendants in the amount of \$6,500.

People's Reply In Support of the Motion

Filed 6/24/26; 9 pages; summarized: Defendants noticed a Person Most Qualified ("PMQ") deposition of Plaintiff, the People of the

State of California (the "People"), and the People subsequently moved for a protective order. The PMQ of the People is necessarily a Deputy District Attorney prosecuting this case, and therefore Defendants must meet the high bar described in *Carehouse Convalescent Hosp. v. Super. Ct. (Sims)* (2006) 143 Cal.App.4th 1558 ["Carehouse"], to depose the People's counsel. (*People v. Super. Ct. (Credit One Bank, N.A.)* (2025) 112 Cal.App.5th 804, 810 ["Credit One"].) Defendants have the burden to establish that they do not have other practicable means to obtain the information and that the information is crucial to the preparation of the case; if Defendants do so, the burden is then on the People to establish that the information sought is privileged. (*Carehouse*, at p. 1563.) Defendants have not met the high bar of the Carehouse test and the Court therefore has "good cause" to grant the Motion and order that the deposition of the People's counsel "not be taken at all." (Code Civ. Proc., § 2025.420, subd. (b)(1).) The Court's Conclusions

The Court's Conclusions

Re: The Request for a Protective Order

Because the issue is whether the deposition of the People's counsel should be taken, the applicable standard is set forth in Carehouse. The alternative elaboration of the good-cause standard cited by Defendants from

a practice guide, with reference to *Emerson v. Elec. Co. v. Super. Ct. (Grayson)* (1997) 16 Cal.4th, 1101, is not applicable. The burden is on the Defendants to meet the Carehouse test and show extremely good cause for the deposition. Defendants have not done so.

Defendants have other practicable means to obtain the information. Defendants have not met their burden to show that they do not have "other practicable means to obtain the information" they seek. (*Credit One*, 112 Cal.App.5th at p. 817 [burden on noticing party].) The word "practicable" means "capable of being put into practice or of being done or accomplished." Most importantly, the People made Investigator Robert Parmelee available for deposition. Defendants deposed him on March 2, 2026, and they have had ample time to seek further deposition of him. He is the investigator on

this case, and the People will call him to testify at trial. In addition, he has been the investigator on this case since its inception. In addition, Defendants can use, and have used, written interrogatories. Defendants wrongly

assert that the People have "stonewalled" their written discovery. The People served code-compliant responses to Defendants' special interrogatories.

Defendants assert they need the ability to ask follow-up questions, probe the completeness of responses, and test the credibility of the State's positions and obtain binding admissions. Defendants have had ample time to ask questions, including follow-up questions, at Inv. Parmelee's deposition, and/or at a follow-up deposition which they chose not to notice. They have had

sufficient time to propound additional written discovery to address the People's factual assertions, but have chosen not to do so. Defendant's desire to obtain "binding admissions" is misplaced. Because "the People" are not

an institution or party in the traditional sense (a natural or fictitious person or a governmental agency), the "binding admissions" that Defendant seeks do not exist. Instead, there are facts which will be presented at trial by the individual witnesses with knowledge of them. The People have timely

responded to Defendants' discovery demands and have not stood in the way of any discovery.

Every topic identified for the PMQ deposition has been the direct or indirect subject of Defendants' Special Interrogatories and Requests for Production.

Defendants already have covered these topics in depth with multiple forms of written discovery. If Defendants believe the People's responses, as drafted by the People's counsel, are insufficient, the response is to move to compel, which they have done concerning the special interrogatories, not to seek to depose the People's counsel.

To the extent the concern is the nearness of trial, the trial date has been set for over a year and the crunched timing is a problem that could have been foreseen.

Moreover, the information sought is not crucial to the preparation of the case.

Defendants have the burden of showing that the information it seeks in the PMQ deposition is crucial to the preparation of its case. (Carehouse.)

Defendants' "fair notice" argument is a red herring, as UCL and FAL cases do not have any requirement that a Defendant have prior notice of the People's legal theory. Defendants contend that the only evidence the People can use to prove the knowledge requirement of the FAL is prior notice of the People's legal theory. But the FAL does not require that the Defendant knew or should have known of the People's "position." The FAL requires proving that the Defendant knew or should have known of the untrue or misleading nature of their advertising. To the extent Defendants are arguing that the UCL and FAL themselves are unconstitutionally vague, California Courts have consistently rejected these challenges and held that these statutes provide adequate notice of prohibited conduct and sufficient guidelines for enforcement.

The Cal/OSHA argument is rejected. The number of jobs in California that are governed by OSHA versus the number of jobs in California governed by Cal/OSHA is not relevant to this case in any way. The Defendants advertised that their courses "strictly adhere" to OSHA. The People contend that those advertisements are false and misleading. The People do not have to prove actual harm or reliance, and thus the People do not need to identify any consumers to which federal OSHA guidelines apply.

Defendants have not met their burden to show the information sought is crucial. But even if they had, the information sought is subject to privilege.

The People point out that material that is evidentiary in nature is not necessarily precluded from constituting attorney work product. Even where an attorney's mental impressions or opinions are "inextricably intertwined" with potentially discoverable evidence, the work product doctrine provides that absolute privilege is afforded to such work product. In the Motion, the People explained that all responsive, non-privileged information has been provided.

Re: Motion to Compel

Defendants previously moved to compel responses to discovery requests related to their Seventh and Twelfth Affirmative Defenses. (Motion to Compel, Jan. 20, 2026.) Defendants sought discovery related to the People's alleged failure to provide notice and an opportunity to cure. The People argued that because those Affirmative Defenses were inapplicable as a matter of law, those responses should not be compelled. On February 11, 2026, the Court heard the motion and agreed with the People. Now, Defendants again move to compel production related to the same Affirmative Defenses that are inapplicable as a matter of law, namely, Special Interrogatories ("SROGs") 4-29 and 45-49. Since the SROGs do not seek "matter ... that is relevant to the subject matter involved in the pending action the Court should, again, deny Defendants' Motion. After filing their first Motion to Compel, Defendants filed a Second Amended Answer ("SAA"), which changed the language of the Seventh and Twelfth Affirmative Defenses but not their import. The Seventh Affirmative Defense, formerly titled "Arbitrary/Capricious Action Without

Justification/Explanation" in the First Amended Answer ("FAA"), alleged that the People shifted their interpretation of the law without providing Defendants notice. Defendants have conducted their business and marketing practices consistent with the law for many years. Plaintiff has, however, recently shifted its interpretation of the law without notice to Defendants or the industry. In the SAA, the Seventh Affirmative Defense is now titled "Fair Notice – Violation of Due Process", but contains the same allegations from the FAA, plus legal arguments from their Reply in Support of their previous Motion to Compel, which the Court rejected. Defendants have conducted their business and marketing practices consistent with the law for many years. Plaintiff has, however, recently shifted its interpretation of the law without notice to Defendants or the industry. The language of the Seventh Affirmative Defense has changed, but it remains inapplicable as a matter of law. The Twelfth

Affirmative Defense, formerly titled "Unconstitutional Vagueness, Lack of Notice, and Violation of Due Process" in the FAA, alleged that unconstitutional vagueness failed to provide fair notice to Defendants. "Unconstitutional vagueness fails to provide fair notice to parties in violation of due process rights." In the SAA, the Twelfth Affirmative Defense was renamed "Unconstitutional Vagueness – Violation of Due Process" but contains the same allegation: "Unconstitutional vagueness fails to provide fair notice to parties in violation of due process rights." The language of the Twelfth Affirmative Defense has changed, but it remains inapplicable as a matter of law.

The Seventh and Twelfth Affirmative Defenses are not applicable in this UCL/FAL action as a matter of law, and thus discovery to obtain facts to support them is inherently not relevant to this action. Moreover, Defendants' discovery demands largely seek only information related to the People giving

Defendants, before filing this action, a period to take corrective action and to correct the People's concerns. However, the People had no legal requirement to give Defendants notice of their unlawful conduct and an opportunity to cure that conduct; whether or not such opportunity was given is not a

defense to UCL or FAL claims and is thus wholly irrelevant. The Court is familiar with the allegations of this law enforcement prosecution: the People allege that Defendants marketed and sold online-only CPR training in violation of California's false advertising and unfair competition laws, Business and Professions Code sections 17200 and 17500.

Defendants wrongly contend that the People's work product, deliberative process, and official information objections are unsupported. The People's amended responses provide the requisite support; for example, the Amended Response to SROG No. 5 states: Responding Party objects on the grounds of the work product doctrine (Code of Civ. Proc., § 2018.030) because the documents supporting attorney determinations of what the law requires and how the law operates, and when attorneys make these determinations, necessarily implicate an attorney's impressions, conclusions, opinions, and legal theories, and case strategy and tactics.

Responding Party further objects on the grounds of the official information

privilege (Evid. Code, § 1040(b)(2)) because a substantive response would reveal information acquired in confidence by public employees performing their duties.

Responding Party further objects on the grounds of the deliberative process

privilege (Times Mirror Co. v. Superior Court (1991) 53 Cal. 3d 1325, 1342)

because a substantive response would reveal internal communications and

discussions within public agencies regarding the strategy and tactics of this case and would intrude upon effective decision-making.

In their Motion, Defendants set forth what they consider to be the relevant procedural/discovery history and explain that the SROGS at issue all relate to Defendants' fair notice and opportunity-to-correct defense, which they state are central to their Seventh and Twelfth Affirmative Defenses. Defendants fail to mention that they previously moved to compel production related to those defenses, and that said motion was denied by this Court, in part, because the Seventh and Twelfth Affirmative Defenses are inapplicable

as a matter of law.

Defendants plead in the Seventh Affirmative Defense that their business and marketing practices have remained consistent, and that the People changed their interpretation of the law without notifying Defendants. These defenses are inapplicable to the causes of action in this case as a matter of law. In

Chern v. Bank of America (1976) 15 Cal.3d 866, 876, a false advertising case, the California Supreme Court rejected the Defendant bank's assertion that deceptive interest rate statements were not actionable because they were commonplace in the banking industry. Even if a practice is an industry custom or widespread, that is not a defense under the UCL or FAL.

In cases involving the use of the "unlawful" prong of the UCL, Courts have consistently rejected the defenses of good faith or good intentions. (Bus. & Prof. Code, § 17200.) Prosecutors may select among similarly situated Defendants, including those in false advertising and unfair competition matters, as long as invidious criteria, such as race, religion or national origin, are not employed. Defendants have not pled anything concerning selective enforcement of this sort; they have solely plead selective enforcement based on an interpretation of the law that Defendants do not agree with. Yet no previous case law is required to put a Defendant on notice that a particular practice violates the UCL or FAL. The Seventh Affirmative Defense is inapplicable as a matter of law, and Defendants' Motion should be denied.

In the Second Amended Answer, page 22, Defendants pled: As a twelfth and separate affirmative defense to each cause of action stated in the Complaint, these answering Defendants assert unconstitutional vagueness. A law

or regulation is unconstitutionally vague where, as here, it fails to give a person of ordinary intelligence fair notice of what is prohibited. Unconstitutional vagueness fails to provide fair notice to parties in violation of due process rights. Plaintiff's enforcement action is predicated on the claim that OSHA guidelines require hands-on or in-person CPR training and, hence, claims of compliance with OSHA guidelines by Defendants, who are online training providers, are false or misleading. The OSHA guidelines upon which Plaintiff's, however, are unconstitutionally vague and ambiguous, rendering any enforcement action predicated thereon violative of Defendants' due process rights.

If Defendants are arguing that the Causes of Action alleged by the People are vague, they are rehashing an argument they presented in their Demurrer and Motion to Strike, both of which this Court previously overruled and denied, respectively.

Assuming Defendants are arguing that the UCL and FAL themselves are unconstitutionally vague, California Courts have consistently rejected these challenges and held that these statutes provide adequate notice of prohibited conduct and sufficient guidelines for enforcement.

As already determined by this Court, and other Courts, neither the Causes of Action, the UCL, nor the FAL, are unconstitutionally vague. Because the Twelfth Affirmative Defense is inapplicable to UCL and FAL actions as a matter of law, the People correctly objected to these discovery requests.

The Twelfth Affirmative Defense is inapplicable as a matter of law.

For the reasons set forth above, Defendants' Motion to Compel should be denied.

Judges

Judge Thomas Anderle

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